

**SUPERIOR COURT OF CALIFORNIA  
COUNTY OF MERCED**

2260 N Street, Merced  
627 W. 21<sup>st</sup> Street, Merced  
1159 G Street, Los Banos

Thursday, July 16, 2026

**Tentative rulings are provided for the following courtrooms and assigned Judicial Officers with scheduled civil matters:**

**Courtroom 8 – Hon. Stephanie L. Jamieson**

**Courtroom 9 – Commissioner David Foster**

**Courtroom 12 – Hon. Jennifer O. Trimble**

**Parties who wish to appear remotely must contact the clerk of the court at (209) 725-4111 to seek permission and arrange for a remote appearance.**

**IMPORTANT: Court reporters will NOT be provided; parties must make their own arrangements. Electronic recording is available in certain courtrooms and may only be activated upon request.**

**The tentative rulings for specific calendars follow:**

SUPERIOR COURT OF CALIFORNIA  
COUNTY OF MERCED

Civil Law and Motion Tentative Rulings  
Hon. Stephanie L. Jamieson  
Courtroom 8

627 W. 21<sup>st</sup> Street, Merced

Thursday, July 16, 2026  
8:15 a.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

1. You must call (209) 725-4240 to notify the court of your intent to appear.
2. You must give notice to all other parties before 4:00 p.m. of your intent to appear.

Per California Rules of Court, rule 3.1308(a)(1), failure to do both items 1 and 2 will result in no oral argument. *Note:* Notifying CourtCall (the court's telephonic appearance provider) of your intent to appear does not satisfy the requirement of notifying the court.

| Case No. | Title / Description |
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| 21CV-01886 | Harris Farms, LP vs James Nickel et al. |
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Motion to Tax Costs

**Plaintiff's motion to tax costs is GRANTED.**

**"If the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that were not reasonable or necessary. On the other hand, if the items are properly objected to, they are put in issue and the burden of proof is on the party claiming them as costs." (*Ladas v. California State Auto. Assn.* (1993) 19 Cal.App.4th 761, 774.)**

**Here, Plaintiff is seeking to tax costs as either not allowable or as not reasonable or necessary. Specifically, Plaintiff challenge the costs claimed for fees for electronic filing or service and "other." Plaintiff objects that the \$4,297.49 in fees for electronic filing or service are excessive in light of the actual filing fees of \$467.10 and that postage fees are not allowable. Further, Plaintiff objects that the "other" costs should not include travel expenses when remote appearance was possible, and that the claimed costs of \$1,568.10 are not supported.**

Plaintiff has properly objected to the costs claimed. This shifts the burden of proof Defendant who is the party claiming the costs. In opposition, attached as Exhibit A to the Declaration of Matthews are invoices evidencing the costs claimed for the fees for electronic filing or service, and as Exhibit B invoices evidencing costs claimed under the category of "other."

The invoices attached as Exhibit A only account for allowable costs in the amount of \$2,083.14. The amount claimed for Fed Ex are not allowable under Code of Civil Procedure section 1033.5, subdivision (b)(3) as they appear to be postage. The remaining costs of \$2,073.30 are not supported by the attached invoices. Accordingly, Plaintiff's motion to tax No. 14 in the amount of \$2,214.35 is GRANTED.

Costs for appearances at hearings are not expressly approved or prohibited under section 1033.5, subdivision (a) or (b). Therefore, they are discretionary under section 1033.5, subdivision (c). Exhibit B only provides evidence of two (2) invoices for CourtCall at \$72 each, and for travel expenses totaling \$334.57 (\$164.35 and \$170.22). Plaintiff argues that the travel expenses of \$334.57 are not reasonably necessary and should be taxed. Here, it is axiomatic that unless excused by the court a party's appearance at a hearing is reasonably necessary and this court in its discretion will allow those costs. However, Defendant fails to account for the remaining costs claimed in the amount of \$1,089.53 or to provide an explanation as to why they are reasonably necessary. Accordingly, Plaintiff's motion to tax No. 15 in the amount of \$1,089.53 is GRANTED.

Defendant is awarded total costs of \$3,257.56.

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25CV-04604 Alma Ramos vs Brandon Ellison

Order to Show Cause Re: Dismissal

**Appearance Required.**

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25CV-06367 Harminder Singh vs Sergio Mora

Motion for Default Judgment Against Defendant Sergio Mora

**The motion for default judgment against Defendant Mora is DENIED WITHOUT PREJUDICE.**

In general, a plaintiff seeking a default judgment against a named defendant must either (1) dismiss all parties, including unserved Doe defendants, against whom judgment is not being sought, or (2) file an application for a separate judgment under Code of Civil Procedure section 579, supported by a showing of grounds for each judgment. (See Rules of Court, rule 3.1800.)

Neither was done in this instance. Accordingly, the motion for default judgment is denied without prejudice.

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## Motion to Compel Arbitration of Plaintiff's Individual Claims, and Stay Arbitration

**The motion to compel arbitration is GRANTED.**

**The request to stay this action is GRANTED.**

**When a motion to compel arbitration is filed and accompanied by prima facie evidence of a written agreement to arbitrate the controversy, the court itself must determine: (1) whether the agreement exists, and (2) if any defense to its enforcement is raised, whether it is enforceable. The moving party bears the burden of proving the existence of an arbitration agreement by a preponderance of the evidence. The party claiming a defense bears the same burden as to the defense. (*Rosenthal v. Great Western Fin. Securities Corp.* (1996) 14 Cal.4th 394, 413-414.)**

**The moving party “can meet its initial burden by attaching to the [motion] a copy of the arbitration agreement purporting to bear the [opposing party's] signature.” (*Bannister v. Marinidence Opco, LLC* (2021) 64 Cal.App.5th 541.)**

**By attaching the arbitration agreement as Exhibit A, to the Declaration of Deborah Hood (See Defendant's Notice of Errata filed July 2, 2026), with Plaintiff's electronic signature, Defendant has established a prima facie case that an enforceable agreement to arbitrate exists. As a preliminary matter, this court finds the inadvertent omission of the agreement to the Declaration of Hood to not be prejudicial as Plaintiff's counsel was in possession of the agreement prior to the filing of the instant motion.**

**Unless there is a dispute over authenticity, the mere recitation of the terms is sufficient for a party to move to compel arbitration. (*Sprunk v. Prisma LLC* (2017) 14 Cal.App.5th 785, 793.) Although Plaintiff challenges the arbitration agreement on other grounds, she does not deny signing the agreement. As such, there is a prima facie case that an enforceable agreement to arbitrate exists.**

**This shifts the burden to Plaintiff to provide a defense to the agreement. Here, Plaintiff challenges the arbitration agreement as unenforceable as there was no meeting of the minds and as being unconscionable.**

**Plaintiff's argument that there was no assent to the agreement is unpersuasive. Here, Plaintiff claims in opposition that she “did not read, speak, or fully understand English . . .” (Opp. 4:15-16) and cites to her declaration for support. However, the cited sections, Quintero Declaration, paragraphs 2, 4-10, do not support this claim. Paragraph 2 states Plaintiff's primary language is Spanish and that she has “difficulty reading and comprehending English language.” (Quintero Decl., ¶ 2, 2:6-7.) Difficulty reading and comprehending English is not an inability to read, speak, or fully understand the language. Similarly, paragraphs 4-10, offer no support as they do not attest to Plaintiff's inability to read, speak, or understand English. Further, as argued by Defendant, “Plaintiff does not state that she requested a Spanish translation and was denied. She does not state that she asked to take the document home and was refused. She does not state that she requested additional time and was denied. She does not state that anyone misrepresented the Agreement as something other than an arbitration agreement.” (Reply, 4:23-27.)**

It is Plaintiff's burden to provide a defense to the arbitration agreement by a preponderance of the evidence. Here, Plaintiff does not carry her burden regarding assent. Without evidence otherwise, as it is plain on its face that the document Plaintiff was signing was an arbitration agreement, which terms are apparent, she is deemed to assent to all its terms.

Plaintiff also challenges the arbitration agreement as unconscionable. Here, there are some aspects of procedural unconscionability. The arguments regarding Plaintiff's primary language, which are addressed above, support a finding that there are some aspects of procedural unconscionability. As does the fact that the arbitration agreement may be viewed as a contract of adhesion.

However, a finding of procedural unconscionability "does not mean that the contract will not be enforced, but rather that the courts will scrutinize the substantive terms of the contract to ensure they are not manifestly unfair or one-sided." (*Baltazar v. Forever 21, Inc.*, (2016) 62. Cal.4th 1237, 1244.) In other words, because procedural unconscionability has been found, the analysis turns on consideration of the substantive unconscionability prong. The substantive inquiry considers whether the overall bargain is overly harsh or unreasonably one sided. (*Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24 Cal.4th 83, 114.)

Here, the terms of the arbitration agreement are not so harsh, unreasonable, or unfairly one sided as to render the agreement unconscionable. The arbitration agreement has the requisite modicum of bilaterality, is limited to Plaintiff's employment with Defendant, provides for a neutral arbitrator that must follow the law, provides adequate discovery, provides types of relief otherwise available in this court, and Defendant is to pay for costs unique to arbitration. The fact that the arbitration agreement contains a class, collective, or other representative action waiver does not render the arbitration agreement unconscionable.

This action is stayed pending arbitration.

An arbitration status hearing is set for Thursday, January 14, 2027, at 8:15 a.m. in Courtroom 8.

The court will sign the order lodged with the court on June 22, 2026.

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26CV-00869

Javier Alvarado vs Central Valley Opportunity Center, Incorporated

Motion to Compel Defendant Central Valley Opportunity Center Incorporated's Response to Plaintiff's Special Interrogatory, Set One, No. 1, and Request for Monetary Sanctions Against Defendant in the Amount Of \$4,110.00

The motion to compel a response to Special Interrogatory, Set One, No. 1, is DENIED as premature

Exhibit C, attached to the Declaration of Young, establishes that Defendant had until June 5, 2026, to provide discovery responses. (Young Decl., ¶ 5, Exhibit C, p. 3.) Plaintiff filed their motion on June 4, 2026. As this is prior to the June 5, 2026, due date, Plaintiff's

**motion is premature. If Defendant served responses on June 5, 2026, which is alleged in Defendant's opposition, the responses would be timely, and this motion would be unnecessary.**

**Accordingly, the motion is denied.**

Motion for Judgment on the Pleadings

**Continued from July 15, 2026.**

**The motion for judgment on the pleadings is DENIED.**

**The request for judicial notice is DENIED as to Exhibits A, B, and E, as the truth or interpretation of the documents are disputed.**

**The request for judicial notice is GRANTED as to Exhibits C and D, but only as to the existence of the documents and not the truth or interpretation of the contents as they are disputed.**

**The request for judicial notice of Defendant's and Plaintiff's counsel's website is DENIED as it is not relevant at this stage.**

**Plaintiff's objections to the Declaration of Bryan B. Miller are OVERRULED.**

**Plaintiff's objections to the Declaration of Custodian of Records are OVERRULED.**

**"A motion for judgment on the pleadings performs the same function as a general demurrer, and hence attacks only defects disclosed on the face of the pleadings or by matters that can be judicially noticed." (*Cloud v. Northrop Grumman Corp.* (1998) 67 Cal.App.4th 995, 999; see also *Templo v. State of California* (2018) 24 Cal.App.5th 730, 735 [motion for judgment on the pleadings is equivalent to a demurrer].)**

**"[J]udgment on the pleadings must be denied where there are material factual issues that require evidentiary resolution." (*Schabarum v. California Legislature* (1998) 60 Cal.App.4th 1205, 1216.)**

**Defendant contends that the prior class settlement in *Rodriguez v. Central Valley Opportunity Center, Incorporated*, Merced Superior Court Case No. 22CV-01358, bars this action based on res judicata. In support, Defendant requests judicial notice of certain documents, that if the truth or interpretation of the matter asserted therein is accepted, would prove Plaintiff's claims are precluded. Of those documents, the truth and interpretation of the contents of Exhibits A, B, and E are disputed by Plaintiff. Further, the interpretation and legal effect of Exhibits C and D are also disputed by Plaintiff. These are factual disputes that require evidentiary resolution.**

**This leaves the motion for judgment on the pleadings to challenge the deficiency of the complaint on its face.**

**Here, accepting Plaintiff's allegations as true, Plaintiff has alleged facts sufficient to constitute each cause of action. Plaintiff alleges he was employed through October 20, 2023. Plaintiff alleges he was a non-exempt employee entitled to wages, overtime, meal**

and rest period premiums, unreimbursed expenses, and penalties. Plaintiff alleges Defendant failed to pay all wages, failed to provide compliant meal and rest periods, failed to pay final wages, failed to reimburse business expenses, and engaged in unlawful business practices. As Defendant's evidence rebutting those allegations will not be considered for the motion for judgment on the pleadings as they require evidentiary resolution, those allegations are sufficient at this stage.

**Accordingly, Defendant's motion is denied.**

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26CV-03503                      Raquel Comparam vs Priscilla Gonzalez

Order to Show Cause re: Restraining Order

**Appearance Required.**

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26CV-03523                      Brittany Objoma vs Rodger Shaw

Order to Show Cause Re: Restraining Order

**Appearance Required.**

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25CV-06713                      Juan Xiong et al. vs Mid-Century Insurance Company

Trial Setting Conference

**Appearance Required.**

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SUPERIOR COURT OF CALIFORNIA  
COUNTY OF MERCED

Limited Civil  
Judge Pro Tem Alexandria Carl  
Courtroom 9

627 W. 21<sup>st</sup> Street, Merced

Thursday, July 16, 2026  
10:00 a.m.

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| Case No. | Title / Description |
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| 23CV-02056 | Cavalry SPV I, LLC vs. Valerie Vera |
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Status Review of Settlement

**Appearance required.**

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| 25CV-01759 | Melanie Oates vs. Nicole Ballou |
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Order of Examination (Small Claims) – Nicole Ballou

**Appearance required.**

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| 25CV-05560 | Transform Credit, Inc vs. Lauren Leon |
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Order to Show Cause Re: Sanctions as to Defense Counsel for Failure to Appear at 05-01-2026 CMC

**Appearance required.**



Order to Show Cause Re: Sanctions as to Plaintiff's Counsel Paul Brisson for Failure to Appear at 05-01-2026 CMC

**The Court has reviewed the declaration filed by Plaintiff's counsel and accepts his explanation for failure to attend the case management conference on May 1, 2026. The order to show cause is discharged and hearing vacated.**

Case Management Conference

**Appearance required.**

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SUPERIOR COURT OF CALIFORNIA  
COUNTY OF MERCED

Restraining Orders  
Hon. Jennifer O Trimble  
Courtroom 12

1159 G Street, Los Banos

Thursday, July 16, 2026  
11:00 a.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

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| Case No. | Title / Description |
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| 24CV-04132 | Wendy SanchezLopez vs. Jazmin Villagrana |
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Order to Show Cause Re: Restraining Order Review hearing

**Appearance Required.**

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| 26CV-00140 | Lilliana Perry vs Lacey Recinos |
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Order to Show Cause Re: Restraining Order Review hearing

**Appearance Required.**

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| 26CV-03521 | Rayna Guerrero vs. Liliana Velasco |
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Order to Show Cause Re: Restraining Order

**Appearance Required.**